

Court No. - 29

Case :- WRIT - C No. - 34642 of 2018

Petitioner :- Riyazuddin

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Zafar Abbas, Mohammad Ilyas

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Pankaj Mithal, J.

Hon'ble Rajiv Joshi, J.

Heard learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for the respondent no.2.

The petitioner is aggrieved by the provisional assessment of the electricity dues vide order dated 26.7.2018.

A perusal of the aforesaid assessment reveals that the petitioner has been called upon to file objections against the provisional assessment. Even otherwise under U.P. Electricity Supply Code, 2005, the petitioner has a right to file objection against the said assessment and it is only on consideration of the objections that the final assessment is made by the Electricity Distribution Authority.

Learned counsel for the petitioner submits that till date no order of final assessment has been passed.

In view of the aforesaid facts and circumstances, we dispose of the petition with liberty to the petitioner to file objections, if any, against the aforesaid provisional assessment within a period of two weeks from today and in case, any such objections are filed, the Executive Engineer shall consider the same and pass the final assessment order in accordance with law most expeditiously, if possible, within a month thereafter.

The petitioner may separately file representation for the restoration of the electricity connection and if any such application is moved, it shall be considered by the Executive Engineer separately by a speaking order.

The writ petition is disposed of.

Order Date :- 11.10.2018

Noman